

“FORM NO. C.A.- 3

[See rule 6(1)]

**Form of Appeal to the Appellate Tribunal under sub-section (1) of section 129A
of Customs Act, 1962.**

In the Customs, Excise and Service Tax Appellate Tribunal.

Appeal No..... of 20

..... Appellant.

Vs.

..... Respondent.

1. Port/ Location Code*

IEC**

PAN or UID***

Port/ Location Code 2*

Port/ Location Code 3*, etc

E-Mail Address

Phone No.

Fax No.

2. The designation and address of the authority passing the order appealed against.

3. Number and date of the order appealed against.

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Dated

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4. Date of communication of a copy of the order appealed against.

5. State or Union territory and the Commissionerate in which the order or decision of assessment, penalty, fine was made.

6. If the order appealed against relates to more than one Commissionerate, mention the names of all the Commissionerates, so far as it relates to the appellant.
7. Designation and address of the adjudicating authority in case where the order appealed against is an order of the Commissioner (Appeals).
8. Address to which notices may be sent to the appellant.
9. Address to which notices may be sent to the respondent.
10. Whether the decision or order appealed against involves any question having a relation to the rate of duty of customs or to the value of goods for the purpose of assessment.
11. Description and classification of goods.
12. Period of dispute.
13.
 - (i) Amount of customs duty, if any, demanded for the period of dispute .
 - (ii) Amount of interest involved up to the date of the order appealed against.
 - (iii) Amount of refund, if any, rejected or disallowed for the period of dispute
 - (iii) Amount of fine imposed.
 - (iv) Amount of penalty imposed.
 - (v) Market value of seized goods.
14. (i) Amount of duty or fine or penalty or interest deposited. If so, mention the amount deposited under each head in the box below. (A copy of the challan under which the deposit is made shall be furnished)

Duty	Fine	Penalty	Interest

- (ii) If not, whether any application for dispensing with such deposit has been made?
15. Does the order appealed against also involve any central excise duty demand, and related fine or penalty, so far as the appellant is concerned?
16. Does the order appealed against also involve any service tax demand, and related penalty, so far as the appellant is concerned?
17. Subject matter of dispute in order of priority (please choose two items from the list below, under the head 'IMPORT' or 'EXPORT' or 'GENERAL' , depending upon the nature of the case)

IMPORT		EXPORT		GENERAL	
(i).Classification – Chapter (ii).Valuation – GVC /SVB or Others. (iii).Application of Exemption Notification No., (iv). Anti-dumping duty. (v). Safeguard duty, (vi). Project imports, vii). Baggage viii). Courier, ix).Imports under Export Promotion Scheme, x). Seizure cases xi). Refunds, xii).NTR (Non Tariff Restrictions like import license, Phyto Sanitary requirements etc.), xiii). Others.		(i) Classification-Srl. Nos. of Export Schedule, (ii) Valuation, (iii) Drawback, (iv) Export under any Export Promotion Scheme (other than drawback), (v) Non-Tariff restrictions, (vi) Others		(i).Custom House Agents Licensing Regulations, 2004, (ii).MOT Charges, (iii).Others	
Priority 1	Priority 2	Priority 1	Priority 2	Priority 1	Priority 2

18. Central Excise Assessee Code, if registered with Central Excise.

19. Service Tax Assessee Code, if registered with Service Tax.

20. If the appeal is against an Order-in-Appeal of Commissioner (Appeals), the number of Orders-in-Original covered by the said Order-in-Appeal.

21. Whether the respondent has also filed appeal against the order against which this appeal is made?

22. If answer to serial number 21 above is 'yes', furnish the details of appeal.

23. Whether the appellant wishes to be heard in person?

24. Reliefs claimed in appeal.

Statement of facts

Grounds of appeal

Signature of the authorised
representative, if any.

Signature of the appellant

Verification

I..... the appellant, do hereby declare that what is stated
above is true and to the best of my information and belief.

Verified today the day of 20

Signature of the authorised
appellant representative, if any

Signature of the appellant

Notes:- (1) The grounds of appeal and the form of verification shall be signed by the
appellant in accordance with rule 3 of the Customs (Appeals) Rules, 1982.

(2) The appeal including the statement of facts and the grounds of appeal shall
be filed in quadruplicate accompanied by an equal number of copies of the order
(one of which at least shall be a certified copy) appealed against.

(3) The appeal shall be in English (or Hindi) and should set forth, concisely and
under distinct heads, the grounds of appeal without any argument or narrative and
such grounds should be numbered consecutively.

(4) The appeal shall be accompanied by such fee as prescribed under sub-section (6)
of section 129A of the Act and shall to be paid through a crossed bank draft drawn in
favour of the Assistant Registrar of the Bench of the Tribunal on a branch of any
nationalized bank located at the place where the Bench is situated.

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* Location Codes of all customs stations from where imports/ exports have taken
place in respect of the appellant to be furnished. Location Codes for all the sea ports,
airports, ICD's, Land Customs stations etc, are available on the website
www.icegate.gov.in [ICEGATE website – downloads-ICEGATE guidelines – Code
List- Location Code List]

** Importer- Exporter Code assigned by the Directorate General of Foreign Trade, to
be mandatorily furnished

*** To be furnished by non- registered persons. Unique Identification (UID) number
to be furnished where Permanent Account Number (PAN) is not available.